

24PSCV03380 24PSCV03380

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Case Number: 24PSCV03380 Hearing Date: June 30, 2026 Dept: H

Vargas v. Vargas, Case

No. 24PSCV03380

ORDER ON MOTION

FOR LEAVE TO AMEND

Plaintiffs Jorge

Vargas and Jose Vargas' Motion for Leave of Court to File First Amended

Complaint is GRANTED. The Court directs

Plaintiffs' counsel to file a copy of Exhibit 2 attached to Ensberg's
declaration no later than 10 calendar days from the date of the hearing.

Background

Plaintiffs

Jorge Vargas ("Jorge") and Jose Vargas ("Jose") ("Plaintiffs") allege as
follows:

Plaintiffs and their brother,

Marco Vargas ("Marco"), were each granted a 1/3 interest as tenants in common
in the real property located at 13250 Francisquito Avenue #52 in Baldwin Park
("subject property"). Their parents also created The Vargas Family Living Trust
dated May 12, 2016 ("Trust"), which addressed the subject property and its
distribution. The Trust provided that if any of them wished to occupy the
subject property they should pay the fair market rent for same. The Trust also
provided that they were equally responsible for the expenses associated with
the subject property. Marco moved into the subject property in or around
September 2022 and continues to occupy same, along with his two adult sons.

Marco has not paid rent and has refused a buy out of his interest.

On October 8, 2024, Plaintiffs filed a complaint, asserting causes of action against Marco and Does 1-20 for: (1) Partition of Real Property and (2) Declaratory Relief.

On December 29, 2025, Marco filed a cross-complaint, asserting causes of action against Plaintiffs and Does 1-20 for: (1) Accounting, (2) Money Had and Received, (3) Breach of Fiduciary Duties, and (4) Unjust Enrichment.

A Post-Mediation Status

Conference/Case Management Conference is set for December 17, 2026.

Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading...” (Code Civ. Proc., § 473, subd. (a)(1); and see § 576 [“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order”].)

“[T]he trial court has wide discretion in allowing the amendment of any pleading.” (Bedolla v. Logan & Frazer (1975) 52 Cal.App.3d 118, 135.) “[I]t is irrelevant that new legal theories are introduced as long as the proposed amendments relate to the same general set of facts.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [quotation marks and citation omitted].) “[E]ven if the proposed legal theory is a novel one, the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (Id. [quotation marks and citation omitted].) With that said, “the failure of a proposed amendment to state facts sufficient to constitute a cause of action or defense may support an order denying a motion to amend.” (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280, disapproved of on other grounds in Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)

Courts must apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, when no prejudice is shown to the

adverse party. (Atkinson v. Elk Corp.

(2003) 109 Cal.App.4th 739, 761.) However, “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial. . . denial may rest upon the element of lack of diligence in offering the amendment after knowledge of the facts, or the effect of the delay on the adverse party.” (Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 940.)

“A motion to amend a pleading
before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules Court, rule 3.1324(a).)

Additionally, “[a] separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules Court, rule 3.1324(b).)

Discussion

Plaintiffs move the Court for an order granting them leave to file a First Amended Complaint (“FAC”).

The motion reflects compliance with California Rules of Court rule 3.1324, subdivision (a). Plaintiffs have attached both a clean and a redlined version of the proposed FAC as Exhibits 2 and 3, respectively, to the accompanying Declaration of Larsen E. Ensberg (“Ensberg”).

Ensberg's declaration, moreover, reflects compliance with the substance of California Rules of Court rule 3.1324, subdivision (b). Ensberg explains that the effect of the amendments is to change the requested manner of partition from sale to partition in kind and to add causes of action for Money Had and Received, Breach of Trust. Unjust Enrichment and Accounting. (Ensberg Decl., ¶ 8.) He explains that Plaintiffs obtained additional information reflecting that subdivision partition in kind is feasible and would be approved by the City of Baldwin Park, and that this information was learned through recent research and investigation conducted after settlement negotiations failed. (Id., ¶¶ 3-7.) He explains that Plaintiffs initially thought subdivision would be overburdensome and extremely difficult, but subsequently learned that it is a very possible and reasonable solution. (Id.) Though Ensberg does not specifically address the new causes of action, the motion points out that they are additional legal theories that arise from facts already pleaded regarding Marco's nonpayment of rent and occupation of the subject property.

Marco asserts that he would be prejudiced if the motion were granted. The proposed amendments, however, relate to the same property, the same ownership dispute, and the same allegations of unpaid rent which were already set forth in the original complaint. The Court agrees that "[t]he fact that partition in kind may require evidence regarding subdivision feasibility, zoning, and valuation does not constitute prejudice where, as here, discovery is ongoing and no trial date has been set." (Reply, 6:17-19.)

Marco argues that the proposed FAC "is legally defective and would invite immediate pleading challenges." (Opp., 7:9-10.) Marco is free to challenge the legal sufficiency of the pleading after it is filed.

The motion is granted. The Court directs Plaintiffs' counsel to file a copy of Exhibit 2 attached to Ensberg's declaration no later than 10 calendar days from the date of the hearing.